

Message History (3)

On 6/3/2026 6:22:02 PM, San Mateo Public Records Center wrote:

Subject: California Public Records Request :: W012789-052526

Body:

RE: PUBLIC RECORDS REQUEST of May 25, 2026, Reference # W012789-052526

Dear Brian C,

The City received the following records request on May 25, 2026.

Pursuant to the California Public Records Act (Gov. Code § 7920.000 et seq.), I request the following record from the San Mateo Police Department.

This request seeks an existing record only (Gov. Code § 7922.530; Sierra Club v. Superior Court (2013) 57 Cal.4th 157). It is not a request that the Department compile, count, summarize, or aggregate. It is a request for the per-row native export described below, produced in redacted form, which I will analyze myself.

Context

As you are aware, PRA W012320-031126 Items 2(b) and 2(c) sought the per-category counts of searches where a case/incident/warrant number was or was not entered (2(b)) and where the connection between the searched data and the listed justification was or was not verified (2(c)). The Department's 4/22/2026 response declined those items on the ground that "the report you seek does not exist as a record maintained by the Department or within the Flock platform" and that the CPRA does not require compilation. This request does not ask for compilation. It asks for the existing per-search record that underlies any such count, in a form that discloses no investigative content.

The Department has already established that per-search records of this type exist and are within the scope of what it produces under the CPRA:

*- Under W012541-041426, the Department has produced, on a rolling basis, monthly native CSV exports of the Flock platform search audit for SMPD. The exports carry the column schema id, userId, searchDate, networkCount, reason. As you already know, that production demonstrates that (a) per-search records exist in the Flock platform; (b) SMPD treats those records as agency records subject to production under the CPRA; (c) the native export format is a row-per-search CSV; and (d) segregable cell-level redaction is the Department's accepted production approach for this schema (user-account values are redacted as ***).*

- On SMPD's Flock Safety transparency portal (<https://transparency.flocksafety.com/san-mateo-ca-pd>), the Department now publishes a rolling-window per-search audit feed. As you are aware, that feed was enabled between 2026-05-04 and 2026-05-11; the 2026-05-18 view contains 613 rows with the column schema id, userId, searchDate, networkCount, offenseType. The published offenseType field is a different column from the reason field produced under W012541 — confirming that the underlying Flock audit table contains additional columns beyond those produced to me, and that SMPD configures which columns are exposed in any given export.

The combination of these two productions establishes that the native Flock audit table supports additional per-search columns — including, at minimum, a case-number column and a justification-connection or justification-verification column described by SMPD's own SOP 205. SOP 205.5.1's audit criteria require review of "entry of required search information by the End-User (case number, etc)" and "connection between searched data and listed justification" — language that presumes per-search records of those facts exist.

Cross-references. W012320-031126 (this request follows up Items 2(b) and 2(c); does not re-open already-final determinations on other items). W012541-041426 (rolling production of the monthly audit exports lacking the case-number and justification-connection columns). The Department's public transparency portal at <https://transparency.flocksafety.com/san-mateo-ca-pd>.

Record requested — for the period November 2022 through the date of production:

A CSV (or equivalent native format) export from the Flock Safety platform search audit for SMPD's account, in the same row-per-search format already produced under W012541-041426, configured to include all per-search compliance columns the Flock platform exposes in the admin audit export — including, at minimum, any column or columns recording (a) a case number, incident number, warrant number, or other identifier entered by the searching user; (b) the free-text justification or reason entered by the searching user (the column produced under W012541 as "reason"); (c) the offense type or category selected by the searching user (the column published on the transparency portal as "offenseType"); (d) any flag, code, or field indicating whether the search has been reviewed, flagged for non-compliance, or otherwise annotated by SMPD as part of its SOP 205 audit process; and (e) any column indicating whether the search was conducted by an SMPD user or by a user from another agency (e.g., via Flock's network-share or organization-search interface).

Produced in the following form:

- Every row of the native audit export is preserved (same row count, same per-row id and searchDate values already produced under W012541-041426).*
- Every column listed above is preserved as a column in the export.*
- Within each row, every populated cell in the listed columns — i.e., any cell containing a value entered by the searching user — is replaced with a fixed redaction marker (e.g., [REDACTED] or █████). Empty cells are passed through as-is; an empty cell contains no investigative content and nothing to redact.*

*The information disclosed by this format is limited to (i) the existence and timestamp of each search (already produced under W012541-041426 and on the public transparency portal), and (ii) which compliance fields on each search were populated by the searching user. No case number, plate, free-text justification value, agency identifier, offense category, or any other value entered by a searching user is disclosed. The redaction approach mirrors the user-account redaction (***) already applied to the same schema under W012541-041426. No compilation, aggregation, or rewriting is requested; the rate of population per compliance column is derived by reading the produced export.*

If the Flock admin audit configuration does not permit selecting one or more of the listed columns for export, please indicate which column(s) cannot be included and the basis for that limitation.

Anticipated exemption issues

- *Gov. Code § 7923.600 (records of investigation). The record requested discloses no investigative content. Every cell value entered by a searching user — case number, plate, free-text justification, agency identifier, offense category — is redacted at production. Empty cells are not redacted because an empty cell is not a record of investigation. What remains is the existence and timestamp of each search (already published on the Department's transparency portal) and which compliance fields on each search were populated. § 7923.600 protects investigative content, not the structural fact of whether a procedural field was filled in. The W012541-041426 production already accepts that audit-export rows for SMPD-user searches are not categorically exempt; this request extends the same segregable-redaction approach already in use to every populated responsive cell.*

- *Civil Code § 1798.90.55(b) (ALPR-information sharing). The record requested contains no "ALPR information" as defined in § 1798.90.5(c) (data captured by an ALPR system about a specific vehicle). The redacted export discloses no plate data, no captured-image data, and no search result; it discloses only the existence of a search and whether each compliance field on that search was populated.*

- *Catchall balancing test (Gov. Code § 7922.000). The public interest in oversight of a publicly funded ALPR program — including in whether the per-search compliance fields the Department's own SOP 205.5.1 references are populated — is substantial. Any reliance on the catchall balancing test should identify the specific harm asserted, per Gov. Code § 7922.540.*

- *"Existing records only" / no obligation to create new records (Gov. Code § 7922.530). This request is for the existing native audit export, redacted under the segregable-redaction approach the Department already applies. Including a column already present in the audit table is a configuration choice within the existing export feature, not the creation of a new record. Sierra Club, 57 Cal.4th at 165–166. Applying a uniform cell-redaction rule to the resulting export is a routine redaction operation, not the creation of a new record.*

- *Records held by Flock Safety as SMPD's contractor. Per City of San Jose v. Superior Court (2017) 2 Cal.5th 608 and Gov. Code § 7920.530, records held by a vendor on the agency's behalf in the course of the vendor's performance of the agency's business are agency records. The W012541-041426 production already accepts that the Flock audit table is within SMPD's scope of producible records.*

- *Segregability (Gov. Code § 7922.525(b)). The request is itself structured to satisfy segregability — every cell is either empty or redacted, and no responsive cell carries unredacted investigative content.*

If the request is denied, please:

- 1. provide specific exemption citations per Gov. Code § 7922.540, identifying the basis for withholding each column or category of cell;*
- 2. distinguish, with respect to each cited exemption, why it applies to this redacted-form request when it has not been invoked against the same schema in the rolling W012541-041426 production; and*
- 3. if the position is that the Flock platform's admin audit export does not support the columns described above, identify the documentation supporting that position.*

Procedural notes. This is a new request, not a re-opening of W012320-031126. The Department's prior final

determinations on W012320 Items 1(a), 2(a), 2(d)–(e), 3(a), and 3(b) are not at issue here. This request is limited to the underlying record implied by W012320 Items 2(b) and 2(c).

Thank you.

A good faith and diligent search yielded no records responsive to your request.

The California Public Records Act requires disclosure of existing identifiable records only and does not require an agency to create a new record, compile information, or answer questions in response to a request. The report you seek does not exist as a record maintained by the Department or within the Flock platform.

Internal documents related to internal searches are being released to you on a rolling basis under #W012541-041426.

Communications related to flagged searches were provided to you under request #W012665-050426.

As you were notified under request W012665-0450426, records reflecting searches conducted by outside law enforcement agencies accessing the Department's ALPR data through the Flock Safety network sharing platform are exempt from disclosure for the reasons set forth below:

Investigatory Records Exemption and Investigative Files Exemption (Government Code § 7923.600).

The requested audit records reflect search activity conducted by law enforcement agencies in connection with criminal investigations. Each log entry documents the existence, timing, and nature of an investigative act by another agency, including the category of criminal offense under investigation and the time frame of the search. Disclosure of these records would reveal confidential investigative activity. These records are therefore exempt from disclosure as investigatory records compiled by a law enforcement agency for law enforcement purposes pursuant to Government Code section 7923.600.

In addition, the audit log entries at issue reflect the investigative decisions and activities of other law enforcement agencies, not those of the San Mateo Police Department. The Department is not the originating agency for these investigative records and is not in a position to assess whether disclosure would compromise another agency's ongoing or pending investigations.

Public Interest Balancing Test (Government Code § 7922.000).

Even to the extent any portion of the requested records might not fall squarely within a categorical exemption, the Department withholds these records under the public interest balancing test set forth in Government Code section 7922.000. The audit logs contain a combination of data fields that, taken together, would allow identification of specific criminal investigations being conducted by specific agencies during specific time periods. The public interest served by nondisclosure — protecting the integrity of active and pending criminal investigations across multiple jurisdictions — clearly outweighs the public interest served by disclosure.

Official Information Privilege (Evidence Code § 1040).

The requested records constitute official information acquired by law enforcement personnel in confidence. Disclosure of the investigative search activity of other agencies would be against the public interest because

there is a necessity for preserving the confidentiality of this information that outweighs the necessity for disclosure in the interest of justice. Revealing which agencies are searching for which categories of criminal activity, and when, would compromise investigative strategies and techniques across multiple law enforcement jurisdictions.

Automated License Plate Reader (ALPR) Exemption (Civil Code § 1798.90.55).

In addition, your request has been denied pursuant to Government Code 7927.705, as records prohibited from disclosure under federal or state law. In this case, Civil Code section 1798.90.55, subdivision (b) prohibits a public agency from selling, sharing, or transferring ALPR information, except to another public agency, and only as otherwise permitted by law.

The City has completed its response to your request and we now consider this record request W012789-052526 closed. If you have any questions, or would like to submit a new request for records, please contact the City.

If you have any questions, please contact me using the below contact information.

Sincerely,

Juliana Santiago
Management Analyst
Police
650-522-7600

On 5/25/2026 9:49:58 PM, San Mateo Public Records Center wrote:



Thank you for your interest in public records of the City of San Mateo. Your request was received by the City of San Mateo on 5/25/2026 and given the reference number **W012789-052526** for tracking purposes.

Record(s) Requested: **Pursuant to the California Public Records Act (Gov. Code § 7920.000 et seq.), I request the following record from the San Mateo Police Department.**

This request seeks an existing record only (Gov. Code § 7922.530; *Sierra Club v. Superior Court* (2013) 57 Cal.4th 157). It is not a request that the Department compile, count, summarize, or aggregate. It is a request for the per-row native export described below, produced in redacted form, which I will analyze myself.

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Procedural notes. This is a new request, not a re-opening of W012320-031126. The Department's prior final determinations on W012320 Items 1(a), 2(a), 2(d)–(e), 3(a), and 3(b) are not at issue here. This request is limited to the underlying record implied by W012320 Items 2(b) and 2(c).

Thank you.

The request is being forwarded to appropriate department(s) for processing.

Monitor request progress at the link below. The City will email you when the request is complete. Thank you for using the San Mateo Records Center.

To monitor the progress or update this request please log into the [San Mateo Records Center](#).

On 5/25/2026 9:49:56 PM, Brian C wrote:

Request Created on Public Portal